

Multiple Choice (10 marks)

1. Which proposition below is the most consistent with what Rawls claims the POP would opt for in respect of 'social primary goods'?
 - (a) The POP will choose wealth over a compassionate society.
 - (b) The POP will choose equality over power.
 - (c) The POP will be unselfish.
 - (d) The POP will choose to protect the disabled.
2. Tom and Jerry entered into a contract whereby Tom agreed to sell Jerry \$1,000 worth of heroin, an illegal substance. This is an example of a:
 - (a) quasi contract
 - (b) void contract
 - (c) voidable contract
 - (d) secondary party beneficiary contract
3. Which proposition below is the most powerful refutation of Olivecrona's psychological explanation of law?
 - (a) Coercion plays no part in our decision to obey the law.
 - (b) He provides no empirical evidence in support of his thesis.
 - (c) His argument is itself metaphysical.
 - (d) He neglects the relation between morality and legal duty.
4. Iverson Jewelers wrote a letter to Miller, 'We have received an exceptionally fine self winding Rolox watch which we will sell to you at a very favorable price.'
 - (a) The letter is an offer to sell
 - (b) A valid offer cannot be made by letter.
 - (c) The letter contains a valid offer which will terminate within a reasonable time.
 - (d) The letter lacks one of the essential elements of an offer.
5. What is the legal nature of the Universal Declaration of Human Rights (UDHR)?
 - (a) The UDHR is a multilateral treaty
 - (b) The UDHR is a UN General Assembly resolution
 - (c) The UDHR is a UN Security Council resolution
 - (d) The UDHR is a declaration adopted by several States at an international conference

True / False (10 marks)

Answer True or False

6. True or False: The distinction between general and particular jurisprudence was first established by H.L.A. Hart.
7. True or False: Collective security is primarily defined as the right of allies to defend a victim State without UN authorization.
8. True or False: Gemeinschaft refers to a society that lacks democratic principles, whereas Gesellschaft is inherently democratic.
9. True or False: Recognition is simply declaratory of statehood, meaning it acknowledges existence but does not create it.
10. True or False: Dworkin believes that human rights are fundamentally sound and can be defined solely by societal norms.

Long Form Response (20 marks)

Answer each question with a clear and complete explanation.

11. Discuss the extent to which individuals possess international legal personality compared to States and international organizations, including the implications of these differences.
12. Discuss the principles of Natural Law jurisprudence and analyze how it asserts the idea that law is grounded in moral correctness within the context of constitutional law.

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